

**Court No. - 29**

**Case :-** WRIT - C No. - 14691 of 2019

**Petitioner :-** M/S Rajendra Auto Wheels Private Ltd. And Another

**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Prabhakar Awasthi, Shivanand Mishra

**Counsel for Respondent :-** C.S.C., Baleshwar Chaturvedi

**Hon'ble Pankaj Mithal, J.**

**Hon'ble Prakash Padia, J.**

Heard Sri Prabhakar Awasthi, learned counsel for the petitioners and Sri Baleshwar Chaturvedi for the 2nd and 3rd respondents.

The petitioners have preferred this writ petition against the rejection of his representation wherein he had complained about unilateral change of tariff from HV-2 to HV-1.

The submission of learned counsel for the petitioners is that in changing the said tariff, no procedure as prescribed under sub-clause vi of Clause 6.9 of the U.P. Electricity Supply Code, 2005 was followed and that no notice advising to get the contracted load enhanced was given to the petitioner.

It may also be pertinent to mention here that the aforesaid change was made on the basis of the audit objection only which probably is not permissible in law.

Sri Baleshwar Chaturvedi, learned counsel appearing for 2nd and 3rd respondents is directed to file counter affidavit within a month. Two weeks thereafter are allowed to the petitioners for filing rejoinder affidavit.

List for admission/final disposal immediately on the expiry of the above period.

Until further orders of this court, the respondents shall not take any coercive steps to realize the bill of the enhanced amount provided petitioners deposit the entire arrears of electricity dues and continues to deposit the same as per the monthly bills raised as per the tariff HV-2 and furnishes security of the difference of the amount between HV-1 and HV-2 to the respondents other than cash and bank guarantee.

**Order Date :-** 26.4.2019

SKS